

SERVICE AGREEMENT CUM NON-DISCLOSURE DEED

Apex Technologies Pvt. Ltd. vs. Rajesh Kumar Sharma

Executed at Mumbai, Maharashtra | Dated: 15th January 2024

1. PARTIES TO THE AGREEMENT

Employer: Apex Technologies Pvt. Ltd., incorporated under Companies Act 2013 (CIN: U72900MH2010PTC208432), 14th Floor, One BKC Tower, Bandra Kurla Complex, Mumbai - 400 051, represented by Director Ms. Priya Mehta ('the Company').

Employee: Mr. Rajesh Kumar Sharma, S/o Shri Mohan Lal Sharma, aged 34 years, Flat No. 402, Shree Apartments, Andheri East, Mumbai - 400 069, Aadhaar No. XXXX-XXXX-7824 ('the Employee').

2. RECITALS AND BACKGROUND

WHEREAS the Company is engaged in software development, IT consulting, and technology solutions for banking, insurance, and e-commerce sectors in India and abroad; AND WHEREAS the Employee has represented that he possesses the requisite qualifications and experience in software architecture and cloud computing necessary for the position of Senior Software Architect; AND WHEREAS the Company, relying upon such representations, has agreed to employ the Employee on the terms and conditions hereinafter set forth; AND WHEREAS it is necessary to protect confidential information, intellectual property, and trade secrets; NOW THEREFORE, in consideration of mutual covenants herein contained, the parties agree as follows:

3. EMPLOYMENT TIMELINE AND KEY DATES

3.1 Chronological Record of Events

01 Sep 2021: Employee applied via LinkedIn. Application reference: APX/2021/HR/4421.

15 Sep

4. COMPENSATION, BENEFITS AND PERQUISITES

The Employee shall be entitled to a Cost to Company (CTC) of INR 38,00,000 (Rupees Thirty-Eight Lakhs Only) per annum, structured as under:

Basic Salary: INR 15,20,000 (40% of CTC)

HRA:

5. DUTIES, RESPONSIBILITIES AND KEY PERFORMANCE AREAS

5.1 Primary Duties

- Design and maintain enterprise-grade cloud architecture on AWS (EC2, RDS, Lambda, S3, CloudFront) and Azure.

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5.2 Key Result Areas (KRAs)

System Uptime: 99.9% SLA compliance for all production systems under Employee's architecture.

Cost

6. NON-DISCLOSURE AND CONFIDENTIALITY OBLIGATIONS

The Employee acknowledges that in the course of employment he will have access to information that is proprietary, confidential, and commercially sensitive, including but not limited to: source code, algorithms, product roadmaps, client data, pricing strategies, financial projections, unpublished patent applications, and business strategies of the Company and its clients ('Confidential Information').

The Employee covenants and undertakes that:

- He shall not, during or after employment, disclose Confidential Information to any third party without prior written consent of the CEO.

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7. APPLICABLE LAWS AND JUDICIAL PRECEDENTS

7.1 Statutory Framework

- The Industrial Disputes Act, 1947 (Sections 2(s), 25F, 25G, 25H) - termination and retrenchment.

7.2 Relevant Judicial Precedents

Niranjan Shankar Golikari v. Century Spinning Co., AIR 1967 SC 1098

Superintendence Co. of India v. Krishan Murgai, (1980) 2 SCC 175

Wipro Ltd. v. Beckman Coulter International SA, 2006 (3) Arb. LR 118 (Del. HC)

Gujarat Bottling Co. Ltd. v. Coca Cola Co., (1995) 5 SCC 545

Percept D'Mark (India) v. Zaheer Khan, (2006) 4 SCC 227

Desiccant Rotors International v. Bappaditya Sarkar, 152 (2008) DLT 56 (Del. HC)

8. RISK FACTORS, LIABILITIES AND PENALTIES

8.1 Risks to the Company

- Data breach by Employee: penalties up to INR 250 Crore under DPDP Act 2023 (Section 25) and criminal liability under IT Act Section 43A.

8.2 Risks to the Employee

- Violation of NDA: liquidated damages INR 5,00,000 plus actual damages as proved by the Company.

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9. ACTION ITEMS AND COMPLIANCE CHECKLIST

9.1 Immediate Actions (Within 7 Days of Execution)

- Employee to submit original educational certificates (B.Tech, M.Tech, AWS certs) to HR for verification.

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9.2 Monthly and Quarterly Actions

- HR to issue monthly salary slips by 5th of following month.

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10. CRITICAL DEADLINES AND NOTICE PERIODS

Notice (Resignation): 90 days written notice; Company may waive and pay in lieu.

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11. TERMINATION AND POST-EMPLOYMENT OBLIGATIONS

11.1 Grounds for Summary Termination (Without Notice)

- Proven dishonesty, fraud, or misappropriation of Company assets or funds.

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11.2 Post-Employment Restrictions (12 Months)

- Shall not solicit any client of the Company with whom Employee had dealings in the 24 months preceding termination.

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12. DISPUTE RESOLUTION AND JURISDICTION

Any dispute arising out of this Agreement shall be first referred to mediation under MCIA. If not resolved within 30 days, it shall be settled by arbitration under the Arbitration and Conciliation Act, 1996 (as amended in 2019). The seat of arbitration shall be Mumbai. The award shall be final and binding.

Either party may seek urgent interim relief (including injunction) from Courts at Mumbai, which shall have exclusive jurisdiction, to the exclusion of all other courts.

13. GENERAL PROVISIONS AND MISCELLANEOUS TERMS

This Agreement shall be construed in accordance with the laws of India. The parties have agreed, declared, and confirm that this Agreement supersedes all previous communications, understandings, or agreements-whether oral or written-between the parties. There are no representation, warranties, or conditions other than those expressly set out in this Agreement. No modification or amendment shall be valid unless made in writing and signed by authorised representative of both parties. If any provision is found invalid or unenforceable, the remaining provisions shall continue in full force. Each party represents that they has capacity to enter into this Agreement, has read and understands all its terms, and has sought independent legal advise prior to signing.

This Agreement is executed in duplicate, each of which shall constitute an original. Stamp duty of INR 500 shall be paid on one original per Maharashtra Stamp Act, 1958 (Article 36). Both originals shall be retained-one by the Company and one by the Employee.

14. EXECUTION AND SIGNATURES

For Apex Technologies Pvt. Ltd.

Employee

Ms. Priya Mehta, Director

Mr. Rajesh Kumar Sharma

Date: _____

Date: _____

Place: Mumbai

Place: Mumbai

SCHEDULE A: EXECUTIVE SUMMARY

Parties: Apex Technologies Pvt. Ltd. (Company) and Rajesh Kumar Sharma (Employee)

Role: Senior Software Architect, Grade A1

CTC: INR 38,00,000 per annum (effective 01 November 2023)

Notice Period: 90 days (both sides)

Non-Compete: 12 months post-employment (India + Singapore)

NDA Duration: 5 years post-employment

Governing Law: Laws of India; Jurisdiction: Mumbai Courts

Dispute: MCIA Mediation then Arbitration (Arbitration Act 1996)

Key Risk: Breach of NDA - INR 5 lakh liquidated damages + injunction

ESOP: 2,000 units over 4 years; Tranche 1 (500 units) on 14 July 2024

SCHEDULE B: CLASSIFICATION AND TAGS

Document Type: Employment Agreement / Service Agreement / NDA

Industry: Information Technology / Software Services

Jurisdiction: India (Maharashtra)

Acts Referenced: Indian Contract Act 1872, IT Act 2000, DPDP Act 2023, Companies Act 2013, EPF Act 1952, Gratuity Act 1972, POSH Act 2013, Copyright Act 1957, Arbitration Act 1996, Maharashtra Stamp Act 1958

Parties: Technology Company (Employer); Senior Technical Professional (Employee)

Sensitivity: Confidential - HR and Legal

Retention Policy: 10 years post-termination

Tags: employment, NDA, non-compete, ESOP, cloud, software, Mumbai, Maharashtra, arbitration, MCIA, confidentiality, gratuity, PF, POSH, DPDP, IT-Act, salary, appraisal, termination, data-protection